

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

LOGFRET, INC., *Complainant*

v.

KIRSHA, B. V., LEENDERT JOHANNES BERGWERFF A/K/A
HANS BERGWERFF, LINDA SIEVAL, *Respondents*.

DOCKET NO. 18-10

Served: April 24, 2019

BEFORE: Erin M. WIRTH, *Administrative Law Judge*.

ORDER GRANTING MOTION TO AMEND COMPLAINT

In this proceeding, Respondents filed a motion to dismiss and the Complainant then filed a motion to amend the complaint. As the motion to amend could impact the motion to dismiss, the motion to amend is being addressed first. As explained below, the motion to amend is granted. Deadlines are provided for completing briefing on the pending motion to dismiss.

On February 7, 2019, Complainant filed a motion seeking to amend the complaint (“Motion”). On February 12, 2019, an order requiring a supplement to the motion to amend the complaint was issued. On February 21, 2018, Complainant filed its memorandum in support of its motion to amend and attached the proposed amended complaint (“Supplemental Memorandum”). On March 7, 2019, Respondents filed an opposition to the motion to amend the complaint and statement of impact of proposed amendment on Respondent’s motion to dismiss (“Opposition”).

Complainant asserts in the motion to amend, that it “learned additional information regarding the facts and circumstances surrounding the allegations in the Complaint, such that Complainant believes justice would be best served by way of a verified amendment of the original Complaint.” Motion at 1. Complainant did not provide any additional information about how the complaint would be amended and did not attach a proposed amended complaint. Accordingly, Complainant was ordered to supplement the motion.

In their supplemental memorandum, Complainant states that it “proposes to amend the Complainant for the purpose of outlining additional facts, and including an additional count,” adding additional exhibits, and “to clarify the jurisdictional bases upon which this proceeding is being brought before the Commission.” Supplemental Memorandum at 4. Complainant argues that administrative agencies have a liberal pleading standard and that the request is reasonable. Supplemental Memorandum at 5-6. Complainant filed the proposed amended complaint with the supplemental memorandum.

Respondents oppose the motion to amend, asserting that there is no new information justifying the amendment; that the proposed amended complaint fails to allege sufficient facts to support jurisdiction and fails to allege a Shipping Act violation; and that futile amendments should not be permitted. Opposition at 2-11.

Pursuant to Commission Rule 66, amendments to a complaint “will be permitted or rejected, either in the discretion of the Commission or presiding officer.” 46 C.F.R. § 502.66(a). The proceeding is at the initial stages and discovery has not yet been completed. There is not a requirement at this stage that new evidence justify the amendment and it is not clear that the amendment would be futile, as the Respondents allege.

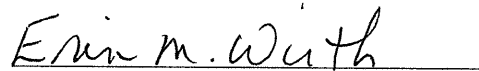
The bulk of the Respondents’ opposition includes detailed arguments about why the amended complaint does not cure any of the issues raised in the motion to dismiss such as jurisdiction. These arguments will be considered in deciding the motion to dismiss. However, they are not reasons to deny the motion to amend. Accordingly, the motion to amend will be granted. Complainants will have an opportunity to respond to the motion to dismiss, including the arguments that Respondents raise in their opposition to the motion to amend. Respondents may file a reply.

Upon consideration of Complainant’s motion to amend the complaint and the opposition of Respondents, it is hereby

ORDERED that the motion to amend the complaint be **GRANTED**. The Secretary is asked to file the amended complaint attached to Complainant’s supplemental memorandum. It is

FURTHER ORDERED that on or before May 8, 2019, Complainant file its opposition to the motion to dismiss. It is

FURTHER ORDERED that on or before May 22, 2019, Respondent file a reply to Complainant’s opposition to the motion to dismiss.


Erin M. Wirth
Administrative Law Judge